

for the life of A., may still either be limited expressly to trustees or be raised by implication; and that in cases where before the Act an *indefinite* chattel interest would have passed, as in a devise to trustees (without the word "heirs") to pay debts, or a freehold with an indefinite interest super-added, as in *Doe v. Simpson* (b), there the words of the will are for the future made to pass the fee simple (c).

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* SECTION II.

THE PROPERTIES AND DEVOLUTION OF THE LEGAL ESTATE IN THE
TRUSTEE.

This branch of our subject we propose to consider, First, with reference to the common law; and, Secondly, with reference to the construction of particular statutes.

First. Of the legal estate at common law.¹

1. **Legal estate at common law.**—It may be stated as a general rule, that the legal estate in the hands of the trustee has at common law precisely the same properties and incidents as if the trustee were the usufructuary owner.

Of dower, curtesy, &c.—If real estate be put in trust it is subject at law in the hands of the trustee to curtesy (a), and

(b) 5 East, 162.

p. 119; 2 Jarm. on Wills, 4th Ed. p.

(c) See the observations on the 320.

above clauses, H. Sugden on Wills,

(a) Bennet v. Davis, 2 P. W. 319.

¹ *Properties of the legal estate.*—At common law the legal title vests in the trustee, with all the properties incident to it, which would be present if he were the absolute owner; *Devin v. Hendershott*, 32 Ia. 192; *Campbell v. Prestons*, 22 Gratt. 396; *Croxall v. Shererd*, 5 Wall. 268; but now there is no dower or curtesy in the legal title to the trust estate; *White v. Drew*, 42 Mo. 561; *Buffalo &c. R. R. Co. v. Lampson*, 47 Barb. 533; *McClellan v. McClellan*, 65 Me. 500; *Dean v. Mitchell*, 4 J. J. Marsh. 451; *Gomez v. Bank*, 4 Sandf. 102; *Bartlett v. Gouge*, 5 B. Mon. 152; but see *Dubs v. Dubs*, 31 Pa. St. 154; but they will attach to the equitable estate; *Hopkinson v. Dumas*, 42 N. H. 303; *Prescott v. Walker*, 16 N. H. 343; and this is generally true in the United States; *Hawley v. James*, 5 Paige, 318; *Lewis v. James*, 8 Humph. 537; *Peay v. Peay*, 2 Rich. Eq. 409; *Tillinghast v. Coggeshall*, 7 R. I. 383; *Cushing v. Blake*, 30 N. J. Eq. 689; *Houghton v. Hopgood*, 13 Pick. 154; but see *Reed v. Whitney*, 7 Gray. 533; *Lobdell v. Hayes*, 4 Allen, 187; *Hamlin v. Hamlin*, 19 Me. 141; if the *cestui que trust* have no next of kin, the trustee holds personally, and probably realty, subject to the state; *Crane v. Reeder*, 21 Mich. 25.